

**BEFORE THE FEDERAL MARITIME COMMISSION
Washington, D.C.**

Aman Kaushik,
Complainant,

v.

SFL Worldwide LLC,
Respondent.

FMC Docket No. 26-10

RESPONDENT SFL WORLDWIDE LLC'S RESPONSE TO COMPLAINANT'S ALLEGATIONS

Respondent, SFL Worldwide LLC ("SFL"), respectfully submits this response to the Complaint filed by Complainant, Aman Kaushik.

I. Introduction

SFL denies that it engaged in any unjust or unreasonable practice in violation of the Shipping Act, including 46 U.S.C. § 41102(c). SFL exercised reasonable care in arranging and managing the shipment and acted promptly and in good faith upon learning of the reported cargo shortage.

The facts demonstrate that the shipment was properly packed, loaded, transported, and delivered through the ocean carrier's network, and that SFL actively cooperated with both the customer and the ocean carrier in attempting to investigate and pursue any cargo claim.

II. Factual Background

A. Quotation and Booking

On February 12, 2026, SFL provided the Complainant with a quotation for transportation utilizing one (1) 20-foot shipping container.

B. Packing and Loading

On March 3, 2026, SFL professionally packed and loaded the shipment using a three-person crew.

The loading process required approximately eight hours and was completed using standard industry packing and securing materials. Upon completion of loading, Container No.

TCLU6938770 was sealed using Seal No. **A1032615**.

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C. Inland Transportation

Following loading, the container was gated into the outbound rail terminal at NS Rail – Chicago Landers on March 3, 2026.

The container subsequently arrived at Norfolk International Terminal (NIT), Norfolk, Virginia, on March 8, 2026, for onward ocean transportation.

D. Discovery of Cargo Shortage

On or about June 1, 2026, SFL became aware that the original container seal had been changed during transportation.

According to the Joint Survey conducted at ICD Tughlakabad by the CONCOR inspection team, the container arrived without a seal at the time of inspection, and a shortage of cargo was noted.

SFL did not perform or control this inspection but relied upon the findings documented by the inspection authorities.

E. Immediate Response

Upon learning of the reported shortage, SFL immediately initiated communications with the ocean carrier, Ocean Network Express ("ONE").

On June 3, 2026, SFL communicated with ONE Line's legal department in India while keeping the Complainant copied on all relevant correspondence. ONE advised that the matter had been referred to its legal department for handling.

F. Claims Process

On June 7, 2026, the Complainant advised SFL that a claim had been submitted to Lakeland Insurance.

Independently, SFL's U.S. booking team initiated a cargo claim with ONE regarding the reported shortage.

ONE instructed SFL to submit the claim through its online claims portal and required the following information before processing the claim:

- a complete list of missing items;
- make and model information where applicable;
- proof of ownership or purchase invoices; and
- the estimated value of each missing item.

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SFL promptly requested this information from the Complainant so that the carrier's claim requirements could be satisfied.

The Complainant declined to provide the requested information and instead advised SFL that all claim documentation would be handled exclusively through the Complainant's insurance carrier. The Complainant further relied upon the Joint Survey Report and correspondence received directly from ONE's legal department.

Because the required information was not provided, SFL was unable to complete the claim submission process required by ONE.

III. Response to Allegations

SFL denies that it engaged in any unjust or unreasonable practice under the Shipping Act.

SFL timely arranged transportation, professionally packed and loaded the shipment, properly sealed the container before release, and coordinated transportation through the applicable carrier.

When informed of the reported shortage, SFL acted promptly by:

- contacting the ocean carrier;
- communicating with the carrier's legal department;
- keeping the Complainant informed;
- initiating a cargo claim with the carrier; and
- requesting the documentation required by the carrier to process the claim.

The inability to complete the carrier's claim process resulted from the absence of documentation required by the carrier, specifically the detailed inventory, proof of ownership, and valuation information requested by ONE.

SFL therefore denies that it failed to act reasonably or that it prevented the investigation or processing of the cargo claim.

IV. Supporting Documents

SFL submits the following documents in support of this response:

1. Copy of quotation dated February 12, 2026.
2. Packing and loading records for March 3, 2026.

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3. Container identification and seal information (Container No. TCLU6938770; Seal No. A1032615).
4. Rail gate-in records.
5. Norfolk terminal arrival records.
6. Email correspondence with ONE Line's legal department.
7. Email correspondence with the Complainant regarding claim documentation.
8. Joint Survey Report.
9. Proof of Delivery.
10. Any additional correspondence demonstrating SFL's efforts to facilitate the carrier's claim process.

V. Conclusion

SFL respectfully submits that the evidence demonstrates it acted diligently, reasonably, and in good faith throughout the transportation and subsequent claims process.

SFL did not engage in any unjust or unreasonable practice under the Shipping Act. Upon learning of the reported shortage, SFL promptly coordinated with the ocean carrier, communicated with the Complainant, and attempted to pursue the cargo claim in accordance with the carrier's procedures. The claim process could not be completed because the documentation required by the carrier was not provided to SFL.

Accordingly, SFL respectfully requests that the Federal Maritime Commission deny the Complaint and grant such other relief as the Commission deems appropriate.

Respectfully submitted,

SFL Worldwide LLC

By: NAMAN MEHTA

Authorized Representative

Date: 07/20/2026

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VERIFICATION

I, Naman Mehta, declare under penalty of perjury that I am an authorized representative of SFL Worldwide LLC, that I have read the foregoing **Respondent SFL Worldwide LLC's Response to Complainant's Allegations**, and that the factual statements contained therein are true and correct to the best of my knowledge, information, and belief.

I declare under penalty of perjury that the foregoing is true and correct.

Executed on this 20th day of July, 2026.

SFL Worldwide LLC

By: NAMAN MEHTA

Name: Naman Mehta

Title: Authorized Representative

Date: 07/20/2026

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